

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1687
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-201, Arizona Revised Statutes, is amended to
3 read:

4 16-201. Primary elections

5 A primary election shall be held on the second to last Tuesday in
6 July in any year in which a general election or special election is held
7 and at which candidates for public office are to be elected. BEGINNING IN
8 2028 AND LATER, A PRIMARY ELECTION SHALL BE HELD ON THE TUESDAY BEFORE THE
9 LAST MONDAY IN MAY IN ANY YEAR IN WHICH A GENERAL ELECTION OR SPECIAL
10 ELECTION IS HELD AND AT WHICH CANDIDATES FOR PUBLIC OFFICE ARE TO BE
11 ELECTED.

12 Sec. 2. Section 16-204, Arizona Revised Statutes, is amended to
13 read:

14 16-204. Declaration of statewide concern; consolidated
15 election dates; definition

16 A. The legislature finds and determines that for the purposes of
17 increasing voter participation and for decreasing the costs to the
18 taxpayers it is a matter of statewide concern that all elections in this
19 state be conducted on a limited number of days and, therefore, the
20 legislature finds and declares that the holding of all elections on
21 certain specific consolidated days is a matter of statewide concern. This
22 section preempts all local laws, ordinances and charter provisions to the
23 contrary.

24 B. For elections held before 2014 and notwithstanding any other law
25 or any charter or ordinance of any county, city or town to the contrary,
26 an election held for or on behalf of a county, city or town, a school
27 district, a community college district or special districts organized

1 pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33 may only
2 be held on the following dates:

3 1. Except for regular elections for candidates in a city or town
4 with a population of one hundred seventy-five thousand or more persons,
5 all elections, including recall elections and special elections to fill
6 vacancies, shall be held on:

7 (a) The second Tuesday in March.

8 (b) The third Tuesday in May.

9 (c) The tenth Tuesday before the first Tuesday after the first
10 Monday in November.

11 (d) The first Tuesday after the first Monday in November.
12 Notwithstanding any other law, an election must be held on this date for
13 the approval of an obligation or other authorization requiring or
14 authorizing the assessment of secondary property taxes by a county, city,
15 town, school district, community college district or special taxing
16 district, except as provided by title 48.

17 2. For regular elections that are only for candidates in a city or
18 town with a population of one hundred seventy-five thousand or more
19 persons and not including recall elections and special elections to fill
20 vacancies in those cities or towns, elections shall be held on:

21 (a) The tenth Tuesday before the first Tuesday after the first
22 Monday in November.

23 (b) The first Tuesday after the first Monday in November.

24 C. For elections held before 2014, for any city or town, including
25 a charter city, that holds its regularly scheduled candidate elections in
26 even-numbered years pursuant to subsection B, paragraph 2 of this section,
27 the term of office for a member of the city council or for the office of
28 mayor begins on or after the second Tuesday in January in the year
29 following the election.

30 D. Subsections B and C of this section do not apply to an election
31 regarding a county or city charter committee or county or city charter
32 proposal that is conducted pursuant to article XIII, section 2 or 3 or
33 article XII, section 5, Constitution of Arizona.

34 E. Beginning with elections held in 2014 and later and
35 notwithstanding any other law or any charter or ordinance to the contrary,
36 a candidate election held for or on behalf of any political subdivision of
37 this state other than a special election to fill a vacancy or a recall
38 election may only be held on the following dates and only in even-numbered
39 years:

40 1. ~~Beginning in~~ THROUGH 2026 ~~and later~~, the second to last Tuesday
41 in July. BEGINNING IN 2028 AND LATER, THE ELECTION SHALL BE HELD ON THE
42 TUESDAY BEFORE THE LAST MONDAY IN MAY. If the political subdivision holds
43 a primary or first election and a general or runoff election is either
44 required or optional for that political subdivision, the first election
45 shall be held on this date, without regard to whether the political
46 subdivision designates the election a primary election, a first election,
47 a preliminary election or any other descriptive term.

1 2. The first Tuesday after the first Monday in November. If the
2 political subdivision holds a general election or a runoff election, the
3 second election held shall be held on this date. If the political
4 subdivision holds only a single election and no preliminary or primary or
5 other election is ever held for the purpose of reducing the number of
6 candidates, or receiving a partisan nomination or designation or for any
7 other purpose for that political subdivision, the single election shall be
8 held on this date.

9 F. Beginning with elections held in 2014 and later that are not
10 candidate elections, an election held for or on behalf of any political
11 subdivision of this state, and including a special election to fill a
12 vacancy or a recall election, may only be held on the following dates:

13 1. The second Tuesday in March.

14 ~~2. The third Tuesday in May.~~

15 ~~3.~~ 2. Beginning in 2026 and ~~later~~ THROUGH 2027, the second to last
16 Tuesday in July. BEGINNING IN 2028 AND LATER, THE ELECTION SHALL BE HELD
17 ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY.

18 ~~4.~~ 3. The first Tuesday after the first Monday in November.
19 Notwithstanding any other law, an election must be held on this date for
20 the approval of an obligation or other authorization requiring or
21 authorizing the assessment of secondary property taxes by a county, city,
22 town, school district, community college district or special taxing
23 district, except as provided by title 48. Notwithstanding any other law,
24 an election must be held on the date specified in this paragraph and only
25 in even-numbered years for the approval of or authorizing the assessment
26 of transaction privilege taxes by a county, city or town.

27 G. Notwithstanding any other law, for an election administered by a
28 county recorder or other officer in charge of elections on behalf of a
29 city, town or school district and that is an all mail ballot election for
30 that city, town or school district, the county recorder or other officer
31 in charge of elections may use a unified ballot format that combines all
32 of the issues applicable to the voters in the city, town or school
33 district requesting the all mail ballot election.

34 H. For the purposes of this section, "political subdivision" means
35 any governmental entity operating under the authority of this state and
36 governed by an elected body, including a city, town, county, school
37 district or community college district or any other district organized
38 under state law but not including a special taxing district.

39 Sec. 3. Section 16-206, Arizona Revised Statutes, is amended to
40 read:

41 16-206. Election day

42 A. THROUGH 2026, the biennial primary election day on the second to
43 last Tuesday in July in the year the general election is held and the
44 biennial general election day on the first Tuesday after the first Monday
45 in November of every even-numbered year are not legal holidays. BEGINNING
46 IN 2028 AND LATER, THE BIENNIAL PRIMARY ELECTION DAY ON THE TUESDAY BEFORE
47 THE LAST MONDAY IN MAY IN THE YEAR THE GENERAL ELECTION IS HELD AND THE

1 BIENNIAL GENERAL ELECTION DAY ON THE TUESDAY AFTER THE FIRST MONDAY IN
2 NOVEMBER OF EVERY EVEN-NUMBERED YEAR ARE NOT LEGAL HOLIDAYS.

3 B. Every public officer or employee is entitled to absence from
4 service or employment for the purpose of voting pursuant to section 16-402
5 on the biennial primary and general election days.

6 Sec. 4. Section 16-311, Arizona Revised Statutes, is amended to
7 read:

8 16-311. Nomination papers; statement of interest; filing;
9 definitions

10 A. Any person desiring to become a candidate at a primary election
11 for a political party and to have the person's name printed on the
12 official ballot shall be a qualified elector of the party and, **THROUGH**
13 **2026**, not less than one hundred twenty nor more than one hundred fifty
14 days before the primary election **AND BEGINNING IN 2028, NOT LESS THAN ONE**
15 **HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY DAYS BEFORE THE PRIMARY**
16 **ELECTION**, shall sign and cause to be filed a nomination paper giving the
17 person's actual residence address or, if the person does not have an
18 actual residence address, a description of place of residence and post
19 office address, or, if the person's actual residence address is protected
20 pursuant to section 16-153, a post office box or private mailbox address
21 in the candidate's district or precinct, as applicable for a district or
22 precinct office, naming the party of which the person desires to become a
23 candidate, stating the office and district or precinct, if any, for which
24 the person offers the person's candidacy, stating the exact manner in
25 which the person desires to have the person's name printed on the official
26 ballot pursuant to subsection G of this section, and giving the date of
27 the primary election and, if nominated, the date of the general election
28 at which the person desires to become a candidate. Except for a candidate
29 for United States senator or representative in Congress, a candidate for
30 public office shall be a qualified elector at the time of filing and shall
31 reside in the county, district or precinct that the person proposes to
32 represent. A candidate for partisan public office shall be continuously
33 registered with the political party of which the person desires to be a
34 candidate beginning ~~on~~ **NOT** later than the date of the first petition
35 signature on the candidate's petition through the date of the general
36 election at which the person is a candidate.

37 B. Any person desiring to become a candidate at any nonpartisan
38 election and to have the person's name printed on the official ballot
39 shall be at the time of filing a qualified elector of the county, city,
40 town or district and, **THROUGH 2027**, not less than one hundred twenty nor
41 more than one hundred fifty days before the election **AND BEGINNING IN**
42 **2028, NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY**
43 **DAYS BEFORE THE ELECTION**, shall sign and cause to be filed a nomination
44 paper giving the person's actual residence address or, if the person does
45 not have an actual residence address, a description of place of residence
46 and post office address, or, if the person's actual residence address is
47 protected pursuant to section 16-153, a post office box or private mailbox

1 address in the candidate's county, city, town or district and ward or
2 precinct, as applicable for a county, city, town or district and ward or
3 precinct office, stating the office and county, city, town or district and
4 ward or precinct, if any, for which the person offers the person's
5 candidacy, stating the exact manner in which the person desires to have
6 the person's name printed on the official ballot pursuant to subsection G
7 of this section and giving the date of the election. A candidate for
8 office shall reside at the time of filing in the county, city, town,
9 district, ward or precinct that the person proposes to represent.

10 C. Notwithstanding subsection B of this section, any city or town
11 may adopt by ordinance for its elections the time frame provided in
12 subsection A of this section for filing nomination petitions. The
13 ordinance shall be adopted not less than one hundred fifty days before the
14 first election to which it applies.

15 D. All persons desiring to become a candidate shall file with the
16 nomination paper provided for in subsection A of this section a
17 declaration, which shall be printed in a form prescribed by the secretary
18 of state. The declaration shall include facts sufficient to show that,
19 other than the residency requirement provided in subsection A of this
20 section and the satisfaction of any monetary penalties, fines or judgments
21 as prescribed in subsection J of this section, the candidate will be
22 qualified at the time of election to hold the office the person seeks, and
23 that for any monetary penalties, fines or judgments as prescribed in
24 subsection J of this section, the candidate has made complete payment
25 before the time of filing.

26 E. The nomination paper of a candidate for the office of United
27 States senator or representative in Congress, for the office of
28 presidential elector or for a state office, including a member of the
29 legislature, or for any other office for which the electors of the entire
30 state or a subdivision of the state greater than a county are entitled to
31 vote, shall be filed with the secretary of state ~~no~~ NOT later than
32 5:00 p.m. on the last date for filing.

33 F. The nomination paper of a candidate for superior court judge or
34 for a county, district and precinct office for which the electors of a
35 county or a subdivision of a county other than an incorporated city or
36 town are entitled to vote shall be filed with the county elections officer
37 ~~no~~ NOT later than 5:00 p.m. on the last date for filing as prescribed by
38 subsection A of this section. The nomination paper of a candidate for a
39 city or town office shall be filed with the city or town clerk ~~no~~ NOT
40 later than 5:00 p.m. on the last date for filing. The nomination paper of
41 a candidate for school district office shall be filed with the county
42 school superintendent ~~no~~ NOT later than 5:00 p.m. on the last date for
43 filing.

44 G. The nomination paper shall include the exact manner in which the
45 candidate desires to have the person's name printed on the official ballot
46 and shall be limited to the candidate's surname and given name or names,
47 an abbreviated version of such names or appropriate initials such as "Bob"

1 for "Robert", "Jim" for "James", "Wm." for "William" or "S." for "Samuel".
2 Nicknames are permissible, but nicknames, abbreviated versions or initials
3 of given names may not suggest reference to professional, fraternal,
4 religious or military titles and may not include a slogan, a promotional
5 word or phrase or any word that does not actually constitute a
6 nickname. No other descriptive name or names shall be printed on the
7 official ballot, except as provided in this section. Candidates'
8 abbreviated names or nicknames may be printed within quotation marks. The
9 candidate's surname shall be printed first, followed by the given name or
10 names.

11 H. Not later than the date of the first petition signature on a
12 nomination petition, a person who may be a candidate for office pursuant
13 to this section shall file a statement of interest with the appropriate
14 filing officer for that office. The statement of interest shall contain
15 the name of the person, the political party, if any, and the name of the
16 office that may be sought. Any nomination petition signatures collected
17 before the date the statement of interest is filed are invalid and subject
18 to challenge. This subsection does not apply to:

19 1. Candidates for elected office for special taxing districts that
20 are established pursuant to title 48.

21 2. Candidates for precinct committeeman.

22 3. Candidates for president or vice president of the United States.

23 I. A person who does not file a timely nomination paper that
24 complies with this section is not eligible to have the person's name
25 printed on the official ballot for that office. The filing officer shall
26 not accept the nomination paper of a candidate for state or local office
27 unless the person provides or has provided all of the following:

28 1. The financial disclosure statement as prescribed for candidates
29 for that office.

30 2. The declaration of qualification and eligibility as prescribed
31 in subsection D of this section.

32 J. Except in cases where the liability is being appealed, the
33 filing officer shall not accept the nomination paper of a candidate for
34 state or local office if the person is liable for an aggregation of \$1,000
35 or more in fines, penalties, late fees or administrative or civil
36 judgments, including any interest or costs, in any combination, that have
37 not been fully satisfied at the time of the attempted filing of the
38 nomination paper and the liability arose from failure to comply with or
39 enforcement of chapter 6 of this title.

40 K. For the purposes of this title:

41 1. "Election district" means this state, any county, city, town,
42 precinct or other political subdivision or a special district that is not
43 a political subdivision, that is authorized by statute to conduct an
44 election and that is authorized or required to conduct its election in
45 accordance with this title.

1 2. "Nomination paper" means the form filed with the appropriate
2 office by a person wishing to declare the person's intent to become a
3 candidate for a particular political office.

4 Sec. 5. Section 16-314, Arizona Revised Statutes, is amended to
5 read:

6 16-314. Filing and form of nomination petitions; definition

7 A. Any person ~~desiring~~ WHO DESIRES to become a candidate at any
8 election and to have the person's name printed on the official ballot
9 shall file, THROUGH 2026, not less than one hundred twenty nor more than
10 one hundred fifty days before the primary election AND BEGINNING IN 2028,
11 NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY DAYS
12 BEFORE THE PRIMARY ELECTION, and with the same officer as provided by
13 section 16-311, a nomination petition in addition to the nomination paper
14 required.

~~C.~~ B. Nomination petitions shall be captioned "partisan nomination petition" or "nonpartisan nomination petition", followed by the language of the petition in substantially the following form, except that if the candidate does not have an actual residence address, the candidate may use a description of place of residence and post office address, or, if the candidate's actual residence address is protected pursuant to section 16-153, a post office box or private mailbox address in the candidate's political division or district from which the nomination is sought is sufficient:

24 Partisan Nomination Petition

I, the undersigned, a qualified elector of the county of _____, state of Arizona, and of (here name political division or district from which the nomination is sought) and a member of the _____ party or a person who is registered as no party preference or independent as the party preference or who is registered with a political party that is not qualified for representation on the ballot, hereby nominate _____ who resides at _____ in the county of _____ for the party nomination for the office of _____ to be voted at the primary election to be held _____ as representing the principles of such party, and I hereby declare that I am qualified to vote for this office and that I have not signed, and will not sign, any nomination petition for more persons than the number of candidates necessary to fill such office at the next ensuing election. I further declare that if I choose to use a post office box address on this petition, my residence address has not changed since I last reported it to the county recorder for purposes of updating my voter registration file.

44 Nonpartisan Nomination Petition

45 I, the undersigned, a qualified elector of the county of
46 _____, state of Arizona, and of (here name political
47 division or district from which the nomination is sought)

1 hereby nominate _____ who resides at _____
2 in the county of _____ for the office of
3 _____ to be voted at the _____ election to
4 be held _____, and hereby declare that I am
5 qualified to vote for this office and that I have not signed
6 and will not sign any nomination petitions for more persons
7 than the number of candidates necessary to fill such office at
8 the next ensuing election. I further declare that if I choose
9 to use a post office box address on this petition, my
10 residence address has not changed since I last reported it to
11 the county recorder for purposes of updating my voter
12 registration file.

13 ~~B.~~ C. The nomination petition of a person seeking to fill an
14 unexpired vacant term for any public office shall designate the expiration
15 date of the term following the name of the office being sought.

16 ~~B.~~ D. For the purposes of this title, "nomination petition means
17 the form or forms used for obtaining the required number of signatures of
18 qualified electors, which is circulated by or on behalf of the person
19 wishing to become a candidate for a political office.

20 Sec. 6. Section 16-322, Arizona Revised Statutes, is amended to
21 read:

22 16-322. Number of signatures required on nomination petitions

23 A. Nomination petitions shall be signed by a number of qualified
24 signers equal to:

25 1. If for a candidate for the office of United States senator or
26 for a state office, excepting members of the legislature and superior
27 court judges, at least one-fourth of one percent but not more than ten
28 percent of the total number of qualified signers in ~~the~~ THIS state.

29 2. If for a candidate for the office of representative in Congress,
30 at least one-half of one percent but not more than ten percent of the
31 total number of qualified signers in the district from which the
32 representative shall be elected except that if for a candidate for a
33 special election to fill a vacancy in the office of representative in
34 Congress, at least one-fourth of one percent but not more than ten percent
35 of the total number of qualified signers in the district from which the
36 representative shall be elected.

37 3. If for a candidate for the office of member of the legislature,
38 at least one-half of one percent but not more than three percent of the
39 total number of qualified signers in the district from which the member of
40 the legislature may be elected.

41 4. If for a candidate for a county office or superior court judge,
42 at least one percent but not more than ten percent of the total number of
43 qualified signers in the county or district, except that if for a
44 candidate from a county with a population of two hundred thousand persons
45 or more, at least one-fourth of one percent but not more than ten percent
46 of the total number of qualified signers in the county or district.

1 5. If for a candidate for a community college district, at least
2 one-quarter of one percent but not more than ten percent of the total
3 voter registration in the precinct as established pursuant to section
4 15-1441. Notwithstanding the total voter registration in the community
5 college district, the maximum number of signatures required by this
6 paragraph is one thousand.

7 6. If for a candidate for county precinct committeeman, at least
8 two percent but not more than ten percent of the party voter registration
9 in the precinct or ten signatures, whichever is less.

10 7. If for a candidate for justice of the peace or constable in a
11 county with a population of one million persons or more, at least one
12 percent but not more than ten percent of the number of qualified signers
13 in the precinct.

14 8. If for a candidate for justice of the peace or constable in a
15 county with a population of less than one million persons, at least one
16 percent but not more than ten percent of the number of qualified signers
17 in the precinct or three hundred signatures, whichever is less.

18 9. If for a candidate for mayor or other office nominated by a city
19 at large, at least five percent and not more than ten percent of the
20 designated party vote in the city, except that a city that chooses to hold
21 nonpartisan elections may provide by ordinance that the minimum number of
22 signatures required for the candidate be one thousand signatures or five
23 percent of the vote in the city, whichever is less, but not more than ten
24 percent of the vote in the city.

25 10. If for an office nominated by ward, precinct or other district
26 of a city, at least five percent and not more than ten percent of the
27 designated party vote in the ward, precinct or other district, except that
28 a city that chooses to hold nonpartisan elections may provide by ordinance
29 that the minimum number of signatures required for the candidate be two
30 hundred fifty signatures or five percent of the vote in the district,
31 whichever is less, but not more than ten percent of the vote in the
32 district.

33 11. If for a candidate for an office nominated by a town at large,
34 by a number of qualified electors who are qualified to vote for the
35 candidate whose nomination petition they are signing equal to at least
36 five percent and not more than ten percent of the vote in the town, except
37 that a town that chooses to hold nonpartisan elections may provide by
38 ordinance that the minimum number of signatures required for the candidate
39 be one thousand signatures or five percent of the vote in the town,
40 whichever is less, but not more than ten percent of the vote in the town.

41 12. If for a candidate for a governing board of a school district
42 or a career technical education district, at least one-half of one percent
43 of the total voter registration in the school district or career technical
44 education district if the board members are elected at large or one
45 percent of the total voter registration in the single member district if
46 governing board members are elected from single member districts or
47 one-half of one percent of the total voter registration in the single

1 member district if career technical education district board members are
2 elected from single member districts. Notwithstanding the total voter
3 registration in the school district, career technical education district
4 or single member district of the school district or career technical
5 education district, the maximum number of signatures required by this
6 paragraph is four hundred.

7 13. If for a candidate for a governing body of a special district
8 as described in title 48, at least one-half of one percent of the vote in
9 the special district but not more than two hundred fifty and not fewer
10 than five signatures.

11 B. ~~THROUGH 2027~~, the basis of percentage in each instance referred
12 to in subsection A of this section, except in cities, towns and school
13 districts, shall be the number of qualified signers as determined from the
14 voter registration totals as reported pursuant to section 16-168,
15 subsection H on January 2 of the year in which the general election is
16 held ~~AND BEGINNING IN 2028, FROM THE VOTER REGISTRATION TOTALS AS REPORTED~~
17 ~~PURSUANT TO SECTION 16-168, SUBSECTION H ON OCTOBER 1 OF THE YEAR BEFORE~~
18 ~~THE YEAR IN WHICH THE GENERAL ELECTION IS HELD~~. In cities, the basis of
19 percentage shall be the vote of the party for mayor at the last preceding
20 election at which a mayor was elected. In towns, the basis of percentage
21 shall be the highest vote cast for an elected official of the town at the
22 last preceding election at which an official of the town was elected. In
23 school districts or career technical education districts, the basis of
24 percentage shall be the total number of active registered voters in the
25 school district or career technical education district or single member
26 district, whichever applies. The total number of active registered voters
27 for school districts or career technical education districts shall be
28 calculated using the periodic reports prepared by the county recorder
29 pursuant to section 16-168, subsection H. ~~THROUGH 2026~~, the count that is
30 reported on January 2 of the year in which the general election is held
31 ~~AND BEGINNING IN 2028, THE COUNT THAT IS REPORTED ON OCTOBER 1 OF THE YEAR~~
32 ~~BEFORE THE YEAR IN WHICH THE GENERAL ELECTION IS HELD~~ shall be the basis
33 for the calculation of total voter registration for school districts or
34 career technical education districts.

35 C. In primary elections the signature requirement for party
36 nominees, other than nominees of the parties entitled to continued
37 representation pursuant to section 16-804, is at least one-tenth of one
38 percent of the total vote for the winning candidate or candidates for
39 governor or presidential electors at the last general election within the
40 district. Signatures must be obtained from qualified electors who are
41 qualified to vote for the candidate whose nomination petition they are
42 signing.

43 D. If new boundaries for congressional districts or legislative
44 districts are established and effective subsequent to January 2 of the
45 year of a general election and before the first date for filing of
46 nomination petitions, the basis for determining the required number of
47 nomination petition signatures is the number of qualified signers in the

1 elective office or district that was effective on ~~January 2~~ **OCTOBER 1** of
2 **THE YEAR BEFORE** the year of a general election. If new boundaries for
3 supervisorial districts, justice precincts or election precincts are
4 adopted after January 2 of the year of a general election and before the
5 last date for filing of nomination petitions for the elective office,
6 district or precinct, the basis for determining the required number of
7 nomination petition signatures is the number of qualified signers in the
8 elective office, district or precinct on the effective date of the new
9 district or precinct.

10 Sec. 7. Section 16-341, Arizona Revised Statutes, is amended to
11 read:

12 **16-341. Nomination petition: method and time of filing: form:**
13 **qualifications and number of petitioners required:**
14 **statement of interest**

15 A. Any qualified elector who is not a registered member of a
16 political party that is recognized pursuant to this title may be nominated
17 as a candidate for public office otherwise than by primary election or by
18 party committee pursuant to this section.

19 B. This article shall not be used to place on the general election
20 ballot the name of a political party that fails to meet the qualifications
21 specified in section 16-802 or 16-804, or the name of any candidate
22 representing such party or the name of a candidate who has filed a
23 nomination petition in the immediately preceding primary election and has
24 failed to qualify as the result of an insufficient number of valid
25 signatures.

26 C. A nomination petition stating the name of the office to be
27 filled, the name and residence of the candidate, or, if the candidate does
28 not have an actual residence address, a description of place of residence
29 and post office address, or, if the person's actual residence address is
30 protected pursuant to section 16-153, a post office box or private mailbox
31 address in the candidate's district, precinct or municipality, as
32 applicable for a district, precinct or municipal office, and other
33 information required by this section shall be filed with the same officer
34 with whom primary nomination papers and petitions are required to be filed
35 as prescribed in section 16-311. Except for candidates for the office of
36 presidential elector filed pursuant to this section, **THROUGH 2026**, the
37 petition shall be filed not less than one hundred twenty days nor more
38 than one hundred fifty days before the primary election **AND BEGINNING IN**
39 **2028, NOT LESS THAN ONE HUNDRED SEVENTEEN NOR MORE THAN ONE HUNDRED FORTY**
40 **DAYS BEFORE THE PRIMARY ELECTION.** The petition shall be signed only by
41 voters who have not signed the nomination petitions of a candidate for the
42 office to be voted for at that primary election.

43 D. The nomination petition shall be in substantially the following
44 form, except that if the candidate does not have an actual residence
45 address, the candidate may use a description of place of residence and
46 post office address, or, if the candidate's actual residence address is
47 protected pursuant to section 16-153, a post office box or private mailbox

1 address in the candidate's district, precinct or municipality, as
2 applicable for a district, precinct or municipal office, is sufficient:

3 The undersigned, qualified electors of _____
4 county, state of Arizona, do hereby nominate _____, who
5 resides at _____ in the county of _____, as a
6 candidate for the office of _____ at the general (or
7 special, as the case may be) election to be held on the
8 _____ day of _____, ____.

9 I hereby declare that I have not signed the nomination
10 petitions of any candidate for the office to be voted for at
11 this primary election, and I do hereby select the following
12 designation under which name the said candidate shall be
13 placed on the official ballot (here insert such designation
14 not exceeding three words in length as the signers may
15 select).

16 E. The nomination petition shall conform as nearly as possible to
17 the provisions relating to nomination petitions of candidates to be voted
18 for at primary elections and shall be signed by at least the number of
19 persons who are registered to vote determined by calculating three percent
20 of the persons who are registered to vote of the state, county,
21 subdivision or district for which the candidate is nominated who are not
22 members of a political party that is qualified to be represented by an
23 official party ballot at the next ensuing primary election and accorded
24 representation on the general election ballot.

25 F. The percentage of persons who are registered to vote necessary
26 to sign the nomination petition shall be determined by the total number of
27 registered voters from other than political parties that are qualified to
28 be represented by an official party ballot at the next ensuing primary
29 election and accorded representation on the general election ballot in the
30 state, county, subdivision or district on ~~January 2~~ OCTOBER 1 of the year
31 BEFORE THE YEAR in which the general election is held. Notwithstanding
32 the method prescribed by subsection E of this section and this subsection
33 for calculating the minimum number of signatures necessary, any person who
34 is registered to vote in the state, county, subdivision or district for
35 which the candidate is nominated is eligible to sign the nomination
36 petition without regard to the signer's party affiliation.

37 G. A nomination petition for any candidate may be circulated by a
38 person who is not a resident of this state but who is otherwise eligible
39 to register to vote in this state if that person registers as a circulator
40 with the secretary of state before circulating petitions. The nomination
41 petition for the office of presidential elector shall include a group of
42 names of candidates equal to the number of United States senators and
43 representatives in Congress from this state instead of separate nomination
44 petitions for each candidate for the office of presidential elector. A
45 valid signature on a petition containing a group of presidential electors
46 candidates is counted as a signature for the nomination of each of the
47 candidates. The presidential candidate whom the candidates for

1 presidential elector will represent shall designate in writing to the
2 secretary of state the names of the candidates who will represent the
3 presidential candidate before any signatures for the candidate can be
4 accepted for filing. A nomination petition for the office of presidential
5 elector shall be filed not less than eighty nor more than one hundred days
6 before the general election. The petition shall be signed only by
7 qualified electors who have not signed the nomination petitions of a
8 candidate for the office of presidential elector to be voted for at that
9 election.

10 H. The secretary of state shall require in the instructions and
11 procedures manual issued pursuant to section 16-452 that persons who
12 circulate nomination petitions pursuant to this section and who are not
13 residents of this state but who are otherwise eligible to register to vote
14 in this state shall register as circulators with the office of the
15 secretary of state before circulating petitions. The secretary of state
16 shall provide for a method of receiving service of process for those
17 petition circulators who are registered.

18 I. Not later than the date of the first petition signature on a
19 nomination petition, a person who may be a candidate for office pursuant
20 to this section shall file a statement of interest with the appropriate
21 filing officer for that office. The statement of interest shall contain
22 the name of the person, the political party, if any, and the name of the
23 office that may be sought. Any nomination petition signatures collected
24 before the date the statement of interest is filed are invalid and subject
25 to challenge. This subsection does not apply to:

26 1. Candidates for elected office for special taxing districts that
27 are established pursuant to title 48.

28 2. Candidates for precinct committeeman.

29 3. Candidates for president or vice president of the United States.

30 J. A person who files a nomination paper pursuant to this section
31 for the office of president of the United States shall designate in
32 writing to the secretary of state at the time of filing the name of the
33 candidate's vice presidential running mate, the names of the presidential
34 electors who will represent that candidate and a statement that is signed
35 by the vice presidential running mate and the designated presidential
36 electors and that indicates their consent to be designated. A nomination
37 paper for each presidential elector designated shall be filed with the
38 candidate's nomination paper. The number of presidential electors shall
39 equal the number of United States senators and representatives in Congress
40 from this state.

41 K. A candidate who does not file a timely nomination petition that
42 complies with this section is not eligible to have the candidate's name
43 printed on the official ballot for that office. The filing officer shall
44 not accept the nomination paper of a candidate for state or local office
45 unless the candidate provides or has provided all of the following:

46 1. The financial disclosure statement as prescribed for candidates
47 for that office.

1 2. The declaration of qualification and eligibility as prescribed
2 in section 16-311.

3 L. Not later than sixty days before the date of the general
4 election, a candidate for governor who files a nomination petition
5 pursuant to this section shall submit to the secretary of state the name
6 of the person who will be the joint candidate for lieutenant governor with
7 that gubernatorial candidate and whose name will appear on the general
8 election ballot jointly with the candidate for governor.

9 M. Except in cases where the liability is being appealed, the
10 filing officer shall not accept the nomination paper of a candidate for
11 state or local office if the person is liable for an aggregation of \$1,000
12 or more in fines, penalties, late fees or administrative or civil
13 judgments, including any interest or costs, in any combination, that have
14 not been fully satisfied at the time of the attempted filing of the
15 nomination paper and the liability arose from failure to comply with or
16 enforcement of chapter 6 of this title.

17 N. The secretary of state may authorize for statewide and
18 legislative offices the creation, use and submission of petitions
19 prescribed by this section in electronic form if those petitions provide
20 for an appropriate method to verify signatures of petition circulators and
21 signers. The secretary of state may require use of a unique marking
22 system for petition pages, including a bar code, a quick response code or
23 another similar marking system.

24 <<Sec. 8. Subject to the requirements of article IV, part 1,
25 section 1, Constitution of Arizona, section 16-949, Arizona Revised
26 Statutes, is amended to read:

27 16-949. Controls on spending from citizens clean elections
28 fund

29 A. The commission shall not spend, on all costs incurred under this
30 article during a [particular] [TWO] calendar year [PERIOD], more than
31 [five dollars] [\$5] times the number of Arizona resident personal income
32 tax returns filed during the [TWO] previous calendar [year] [YEARS]. The
33 commission may exceed this limit during a [TWO] calendar year [PERIOD],
34 provided that it is offset by an equal reduction of the limit during
35 another [TWO] calendar year [PERIOD] during the same four-year period
36 beginning January 1 immediately after a gubernatorial election.

37 B. The commission may use up to [ten per cent] [TWENTY PERCENT] of
38 the amount specified in subsection A of this section for reasonable and
39 necessary expenses of administration and enforcement, including the
40 activities specified in section 16-956, subsection A, paragraphs 3 through
41 7 and subsections B and C. Any portion of the ten per cent] [TWENTY
42 PERCENT] not used for this purpose shall remain in the fund.

43 C. The commission may apply up to [ten per cent] [TWENTY PERCENT]
44 of the amount specified in subsection A of this section for reasonable and
45 necessary expenses associated with public education regarding
46 participation as a candidate or a contributor, or regarding the functions,
47 purpose and technical aspects of the act. Reasonable and necessary

1 expenditures made pursuant to section 16-956 are not included in this
2 subsection.

3 D. The commission may spend monies in the fund for the reasonable
4 and necessary expenses to implement the act but shall not use monies in
5 the fund to promote the benefits of the clean elections act. Expenditures
6 made pursuant to subsection C of this section or in section 16-956,
7 subsection A are deemed not to constitute promoting the benefits of the
8 clean elections act. Expenditures pursuant to this subsection shall not
9 be included in the limits prescribed in subsection C of this section.

10 E. The state treasurer shall administer a citizens clean elections
11 fund from which costs incurred under this article shall be paid. The
12 auditor general shall review the monies in, payments into and expenditures
13 from the fund ~~[no]~~ [NOT] less often than every four years.>>

14 <<Sec. 9. Subject to the requirements of article IV, part 1,
15 section 1, Constitution of Arizona, section 16-951, Arizona Revised
16 Statutes, is amended to read:

17 16-951. Clean elections funding

18 A. At the beginning of the primary election period, the commission
19 shall pay from the fund to the campaign account of each candidate who
20 qualifies for clean elections funding:

21 1. For a candidate who qualifies for clean elections funding for a
22 party primary election, an amount equal to the original primary election
23 spending limit.

24 2. For an independent candidate who qualifies for clean elections
25 funding, an amount equal to seventy percent of the sum of the original
26 primary election spending limit and the original general election spending
27 limit.

28 3. For a qualified participating candidate who is unopposed for an
29 office in that candidate's primary, in the primary of any other party and
30 by any opposing independent candidate, an amount equal to ~~[five dollars]~~
31 [\$5] times the number of qualifying contributions for that candidate
32 certified by the commission.

33 B. At any time after the ~~[first day of January]~~ [ONE HUNDRED FIFTY
34 THIRD DAY AFTER THE BEGINNING OF THE QUALIFYING PERIOD] of an election
35 year, any candidate who has met the requirements of section 16-950 may
36 sign and cause to be filed a nomination paper in the form specified by
37 section 16-311, subsection A, with a nominating petition and signatures,
38 instead of filing such papers after the earliest time set for filing
39 specified by that subsection. ~~[Upon]~~ [ON] such filing and verification of
40 the signatures, the commission shall pay the amount specified in
41 subsection A of this section immediately, rather than waiting for the
42 beginning of the primary election period.

43 C. At the beginning of the general election period, the commission
44 shall pay from the fund to the campaign account of each candidate who
45 qualifies for clean elections funding for the general election, except
46 those candidates identified in subsection A, paragraph 2 or subsection D

1 of this section, an amount equal to the original general election spending
2 limit.

3 D. At the beginning of the general election period, the commission
4 shall pay from the fund to the campaign account of a qualified
5 participating candidate who has not received ~~[funds]~~ [MONIES] pursuant to
6 subsection A, paragraph 3 of this section and who is unopposed by any
7 other party nominee or any opposing independent candidate an amount equal
8 to ~~[five dollars]~~ [\$5] times the number of qualifying contributions for
9 that candidate certified by the commission.

10 E. The special original general election spending limit, for a
11 candidate who has received ~~[funds]~~ [MONIES] pursuant to subsection A,
12 paragraphs 2 or 3 or subsection D of this section, shall be equal to the
13 amount that the commission is obligated to pay to that candidate.>>

14 <<Sec. 10. Subject to the requirements of article IV, part 1,
15 section 1, Constitution of Arizona, section 16-961, Arizona Revised
16 Statutes, is amended to read:

17 16-961. Definitions

18 A. The terms ~~["candidate's campaign committee,"]~~ "contribution,"
19 "expenditures," ~~["exploratory committee,"]~~ "independent expenditure,"
20 "personal monies[;]" ~~["political committee"]~~ and "statewide office" ~~[are~~
21 ~~defined]~~ [HAVE THE SAME MEANINGS PRECIBED] in section 16-901.

22 B. 1. "Election cycle" means the period between successive general
23 elections for a particular office.

24 2. "Exploratory period" means the period beginning on the day after
25 a general election and ending the day before the start of the qualifying
26 period.

27 3. "Qualifying period" means [:

28 (a) THROUGH 2026.] the period beginning on the first day of August
29 in a year preceding an election and ending one week before the primary
30 election.

31 [(b) BEGINNING IN 2028, THE PERIOD BEGINNING ONE YEAR BEFORE THE
32 PRIMARY ELECTION AND ENDING ONE WEEK BEFORE THE PRIMARY ELECTION.]

33 4. "Primary election period" means the nine-week period ending on
34 the day of the primary election.

35 5. "General election period" means the period beginning on the day
36 after the primary election and ending on the day of the general election.

37 6. For any recall election, the qualifying period shall begin when
38 the election is called and last for thirty days, there shall be no primary
39 election period and the general election period shall extend from the day
40 after the end of the qualifying period to the day of the recall election.
41 For recall elections, any reference to "general election" in this article
42 shall be treated as if referring to the recall election.

43 C. 1. "Participating candidate" means a candidate who becomes
44 certified as a participating candidate pursuant to section 16-947.

45 2. "Nonparticipating candidate" means a candidate who does not
46 become certified as a participating candidate pursuant to section 16-947.

1 3. Any limitation of this article that is applicable to a
2 participating candidate or a nonparticipating candidate shall also apply
3 to that candidate's campaign committee or exploratory committee.

4 D. "Commission" means the citizens clean elections commission
5 established pursuant to section 16-955.

6 E. "Fund" means the citizens clean elections fund defined by this
7 article.

8 F. 1. "Party nominee" means a person who has been nominated by a
9 political party pursuant to section 16-301 or 16-343.

10 2. "Independent candidate" means a candidate who has properly filed
11 nominating papers and nominating petitions with signatures pursuant to
12 section 16-341.

13 3. "Unopposed" means with reference to an election for:

14 (a) A member of the house of representatives, opposed by no more
15 than one other candidate who has qualified for the ballot and who is
16 running in the same district.

17 (b) A member of the corporation commission, opposed by a number of
18 candidates who have qualified for the ballot that is fewer than the number
19 of corporation commission seats open at that election and for which the
20 term of office ends on the same date.

21 (c) All other offices, opposed by no other candidate who has
22 qualified for the ballot and who is running in that district or running
23 for that same office and term.

24 G. "Primary election spending limits" means:

25 1. For a candidate for the legislature, [~~twelve thousand nine~~
26 ~~hundred twenty-one dollars~~] [~~\$12,921~~].

27 2. For a candidate for mine inspector, [~~forty-one thousand three~~
28 ~~hundred forty-nine dollars~~] [~~\$41,349~~].

29 3. For a candidate for treasurer, superintendent of public
30 instruction or the corporation commission, [~~eighty-two thousand six~~
31 ~~hundred eighty dollars~~] [~~\$82,680~~].

32 4. For a candidate for secretary of state or attorney general, [~~one~~
33 ~~hundred sixty-five thousand three hundred seventy-eight dollars~~]
34 [~~\$165,378~~].

35 5. For a candidate for governor, [~~six hundred thirty-eight thousand~~
36 ~~two hundred twenty-two dollars~~] [~~\$638,222~~].

37 H. "General election spending limits" means amounts fifty [~~per~~
38 ~~cent~~] [~~PERCENT~~] greater than the amounts specified in subsection G of this
39 section.

40 I. 1. "Original" spending limit means a limit specified in
41 subsections G and H of this section, as adjusted pursuant to section
42 16-959, or a special amount expressly set for a particular candidate by a
43 provision of this title.

44 2. "Adjusted" spending limit means an original spending limit as
45 further adjusted pursuant to section 16-952.>>

1 <<Sec. 11. Requirements for enactment; three-fourths vote
2 Pursuant to article IV, part 1, section 1, Constitution of Arizona,
3 sections 16-949, 16-951 and 16-961, Arizona Revised Statutes, as amended
4 by this act, are effective only on the affirmative vote of at least
5 three-fourths of the members of each house of the legislature.>>

6 Enroll and engross to conform

7 Amend title to conform

AARON MÁRQUEZ

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